

STATE OF NEW YORK

7097--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 20, 2025

Introduced by M. of A. BICHOTTE HERMELYN -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to including public employment in wage payment provisions

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 190 of the labor law, as amended
2 by chapter 281 of the laws of 2002, is amended to read as follows:

3 3. "Employer" includes [~~any person, corporation, limited liability~~
4 ~~company, or association employing any individual in any occupation,~~
5 ~~industry, trade, business or service. The term "employer" shall not~~
6 ~~include a governmental agency]~~ counties, towns, villages, school
7 districts, and any other municipal corporations or public authorities,
8 employing any individual in any occupation, industry, trade, business or
9 service. The term "employer" shall apply only to public sector employ-
10 ers, including all local municipalities, and shall not include private
11 sector employers or entities.

12 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[~~-~~] is old law to be omitted.

LBD10569-02-5